

# MUTUAL NON-DISCLOSURE AGREEMENT (ACME CLOUD SYSTEMS, INC. — VERTEX ANALYTICS LTD.)

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Agreement ACME-VTX-NDA-2026    Effective 2026-05-04

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This Mutual Non-Disclosure Agreement is entered into as of May 4, 2026 between Acme Cloud Systems, Inc. and Vertex Analytics Ltd. (each a “party”).

## 1. Purpose

1.1 The parties wish to explore a potential commercial relationship concerning data analytics integration (the “Purpose”) and may disclose confidential information to each other for that Purpose.

## 2. Confidential Information

2.1 “Confidential Information” means non-public information disclosed by one party to the other, in any form, that is marked confidential or that a reasonable person would understand to be confidential in the circumstances of disclosure.

2.2 Confidential Information does not include information that (a) is or becomes publicly available other than through breach of this Agreement, (b) the receiving party lawfully possessed before disclosure, (c) the receiving party develops independently without use of or reference to the disclosing party’s Confidential Information, or (d) a third party lawfully discloses to the receiving party without restriction.

## 3. Obligations

3.1 The receiving party shall use the disclosing party’s Confidential Information only for the Purpose, shall protect it with at least reasonable care, and shall disclose it only to its employees, affiliates, and professional advisers who need it for the Purpose and who are bound by confidentiality obligations no less protective than these.

3.2 If the receiving party is compelled by law or court order to disclose Confidential Information, it shall, to the extent legally permitted, give the disclosing party prompt notice and reasonable cooperation to seek protective treatment.

#### 4. Term and Survival

4.1 This Agreement takes effect on the date first written above and continues for two (2) years, after which either party may stop disclosing Confidential Information.

4.2 The obligations in Section 3 continue for five (5) years after the date of each disclosure. Obligations with respect to information that constitutes a trade secret continue for so long as the information remains a trade secret under applicable law.

#### 5. Return or Destruction

5.1 On written request, the receiving party shall return or destroy the disclosing party's Confidential Information within thirty (30) days, except for one archival copy retained solely to evidence compliance and for copies in routine backups that are deleted in the ordinary course.

#### 6. No Other Rights

6.1 No license, ownership interest, or obligation to enter into any further agreement is created by this Agreement. All Confidential Information is provided "as is," without warranty of accuracy or completeness.

#### 7. General

7.1 This Agreement is governed by the laws of the State of New York. Neither party may assign it without the other's written consent.

7.2 The parties acknowledge that damages may be an inadequate remedy for breach and that the disclosing party may seek injunctive relief in addition to any other remedy.

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SIGNATURE • NAME • TITLE • DATE

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SIGNATURE • NAME • TITLE • DATE

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Corpus note: Mostly narrative; only the survival period and the return/destroy deadline are rule-shaped.